



ADDENDUM 04 PMSB 25007 – C71

to the Request for Tender PMSB-25007-C71- Provision of Head Works Contractor – Konedobu, Port Moresby, Papua New Guinea released on 26/06/2026

DFAT provides the following information in accordance with the Standard Conditions of Tender.

No.	Question/Clarification	Response
1	If subsequent work areas are not handed over in accordance with the agreed programme, will the Contractor be entitled to an Extension of Time and reimbursement of additional costs?	DFAT intends to make each subsequent Stage available generally in accordance with the indicative programme set out in the RFT documentation. However, Tenderers should note that the sequencing and timing of Stage handovers may be affected by operational requirements, resident relocations and other Commonwealth requirements, and the staging plan may be amended during the course of the Project. Where access to a subsequent Stage is delayed by the Commonwealth and such delay impacts the Contractor's ability to achieve the relevant Date for Practical Completion, the Contractor may be entitled to an Extension of Time in accordance with the Contract.
2	For staged handovers, please confirm whether the Contract Time for each stage will commence from the date that possession of that stage is given to the Contractor.	Yes. For each Stage, the applicable Contract Time will commence from the date that possession of, and access to, that Stage is provided to the Contractor in accordance with the Contract. The Contractor will not be required to achieve Practical Completion of a Stage within the nominated Contract Time until possession of that Stage has been made available by the Commonwealth. For the avoidance of doubt, delays to the handover of future Stages will not of themselves accelerate the Contract Time for those Stages, and the Commonwealth reserves the right to adjust the staging sequence and timing to meet operational requirements.
3	If changes in Papua New Guinea legislation (including minimum wage adjustments, taxes, duties or statutory requirements) increase the Contractor's costs after Contract Award, will such increases be treated as a Variation or otherwise compensated?	Where, after the Date of the Contract, a change in Papua New Guinea legislation, regulation or statutory requirement comes into force that: (a) necessitates a change to the Works; (b) could not reasonably have been anticipated by the Contractor exercising due diligence at the Date of the Contract; and (c) causes the Contractor to incur more (or less) cost, the resulting cost difference will be assessed by the Superintendent and added to (or deducted from) the Contract Sum under clause 11.2 of the draft Contract. Such a change may also constitute a Qualifying Cause of Delay entitling the Contractor to an extension of time, subject to the notice requirements in clause 34. Tenderers should note that increases arising from matters the Contractor could reasonably have anticipated at the Date of the Contract are not compensable, and that strict notice timeframes apply under clauses 11.2(a) and 42.



Australian Government

Department of Foreign Affairs and Trade

4	As the Works will be completed and handed over in stages, please confirm whether the Defects Liability Period for each stage will commence from the Practical Completion of that stage.	Yes, as per the Draft Contract the Defects Liability Period (DLP) will commence for each stage once Practical Completion (PC) is achieved.
5	As the Works will be completed and handed over in stages, please confirm whether Securities will be released separately for each completed stage.	The draft contract uses Security in the form of bank guarantees under clause 5. Security is set up and released on a per-Stage basis, not as a single pool across all seven Stages. Under clause 5.4, on issue of the Certificate of Practical Completion for a given Stage, 50% of the Security held for that Stage (being 5% of the Contract Sum for that Stage) is released to the Contractor within 14 days. The remaining 50% is released 14 days after the Final Certificate is issued for that Stage, i.e. after expiry of the 12-month Defects Liability Period applicable to that Stage.
6	Please confirm the procedure for instructing and approving Variations, particularly where urgent work is required before a formal Variation Order is issued.	Variations must be directed in writing by the Superintendent under clause 36.1 of the draft Contract. A direction only constitutes a Variation if it is expressly stated to be a variation instruction, or the Superintendent confirms in writing (before the Contractor starts complying) that it will be treated as one. The Contractor must not commence any work it considers to be a Variation without such a written direction or confirmation – if it does so without compliant authorisation, it has no entitlement to be paid for that work or to claim an extension of time, even if the work was in fact necessary or beneficial to the project (clause 36.1). The Contractor may be asked to provide an estimate of programme and cost impact, or a detailed quotation, before a direction is issued (clause 36.2), and Variations are priced in accordance with the order of precedence in clause 36.4 (prior agreement, then Contract rates, then Schedule of Rates, then reasonable rates). On urgency specifically: the draft Contract does not include an expedited or emergency Variation procedure. If a genuine emergency arises affecting protection of the works, property or people, clause 13 (Urgent Protection) allows the Superintendent to take direct action itself rather than the Contractor proceeding unilaterally.
7	Could we please have pictures of the interiors and exteriors of the houses we visited during the site visit?	DFAT advises that no additional internal or external photographs of the residences are available for issue.



8	Clause 3.3 of the Formal Instrument of Agreement states: “the parties agree and acknowledge that a copy of the Contract Conditions marked-up to identify deletions, additions and amendments made, has been made available to them prior to execution of this Formal Instrument of Agreement.” Can this marked-up version of the Contract Conditions be made available for the information of Tenderers?	The Commonwealth advises that the reference in Clause 3.3 of the Formal Instrument of Agreement to a "marked-up" version of the Contract Conditions relates to a comparison between the Draft Contract included in the Request for Tender documentation and the base version of AS 4902-2000 General Conditions of Contract for Design and Construct. Tenderers are required to prepare and submit their tenders on the basis of the Draft Contract provided at Attachment A, which represent the contractual terms proposed by the Commonwealth for this procurement. The Commonwealth does not intend to separately issue a marked-up comparison document during the tender process. However, for information purposes, a copy of the base version of AS 4902-2000 may be made available to the preferred tenderer during contract finalisation to assist in identifying the amendments incorporated into the Draft Contract. Accordingly, Tenderers should rely on the Draft Contract provided at attachment A when pricing, assessing risk and preparing their submissions.
---	---	---

All other information as set out in the RFT dated 26/06/2026 remains unchanged.

---End of Addendum No. 004---